

**DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION**

1. Identification of the agency and the contracting activity

Program Office:

Department of Transportation (DOT),
Office of the Secretary (OST),
Office of the Chief Information Officer (OCIO)

Contracting Activity:

Federal Highway Administration
(FHWA) IT ACE
1200 New Jersey Avenue, SE
Washington, D.C. 20590

2. Nature and/or description of the action being approved

Justification and approval to use other than full and open competition to award a two-month contract to Lexmark International Inc. (Lexmark) for Multi-Function Printer (MFP) Supplies & Support to maintain continuity of operations while the corrective action resolves the protest on awarding the successor contract.

3. Description of the supplies or services required to meet the agency's needs (including the estimated value)

The two-month contract will allow Lexmark to continue to provide MFPs and related services nationwide to DOT. The total estimated amount of this contract is [REDACTED] for performance from 3/14/2025 – 5/13/2025.

4. Statutory authority permitting other than full and open competition

The authority to enter into a contract for this effort without full and open competition is "6.302-1, Only one responsible source and no other supplies or services will satisfy agency requirements."

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited

Competition is not possible for this short period because the new award has been protested. This action provides sufficient time to allow for the continuation of services through the resolution of this protest and establishment of a new award.

6. **Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized**

A notice of this justification will be posted on the GPE.

7. **Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable**

The FHWA will ensure that all costs associated with the proposed contract are fair and reasonable. The FHWA will perform a thorough analysis of the Offeror's proposal to substantiate this determination.

8. **Description of the market research conducted and the results or a statement of the reason market research was not conducted**

Market research was performed for the recompetete solicitation through GSA's Market Research As a Service (MRAS).

9. **Other facts supporting the use of other than full and open competition**

N/A.

10. **Listing of the sources, if any, that expressed, in writing, an interest in the acquisition.**

N/A.

11. **Statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.**

The supplies and services were recompeteted as a small business set-aside on GSA. This bridge contract is only necessary due to a protest that has delayed the new award.

12. **Certification**

I certify that the information provided in this justification is complete and accurate to the best of my knowledge and belief.



Digitally signed by KYLE ROBERT
GRIGGS
Date: 2025.03.14 14:14:39 -04'00'

Kyle Griggs
Contracting Officer- FHWA